

COMMUNITY GUIDE TO THE FINDINGS AND CONDITIONS

Separate review of the April 14, 2026 ZA Notice of Decision and July 1, 2026 CPC / Board of Adjustment decision
ZCOA2026-0013 | ZA2026-0024 / ZBA2026-0001

Purpose and status key. This unofficial reader’s guide summarizes already-filed appeal materials, available original CUP application materials, and the certified July 1 CPC hearing transcript. It does not amend the appeal, submit new evidence, or replace the official record.

Portal access. The BCC was provided access to a document portal containing the appeal materials and related record documents. This guide is solely a roadmap to help readers locate and understand the already-available materials, findings, conditions, and transcript references. It does not ask the BCC to rely on material outside the record.

Central clarification. The appeal does not contend that every final engineering document was mandatory at the CUP stage. Final construction-level traffic, drainage, fire, and related review may occur during building-permit review. The appeal issue is whether evidence before the ZA and CPC was sufficient to support required CUP findings when they acted.

Status key. “Supported / no separate appeal issue identified” means an accurate fact, definition, disclaimer, or ordinary enforceable requirement. “Mixed record / appeal issue” means there is support but also an unresolved question. “Valid future condition; does not cure pre-approval evidence issue” means an enforceable later safeguard, not itself evidence supporting an earlier CUP finding.

I. Application-Level Traffic Record

The CUP form required the applicant to prove that undue traffic congestion or hazards would not be created and to submit a written justification. It did not require every possible traffic analysis or every final construction-review item. The original CUP materials contain general statements about working with authorities, adequate parking and traffic flow, and coordinating prayer times.

The original application packet does not include a Traffic Scoping Report, Traffic Impact Analysis, trip-generation calculation, traffic count, capacity analysis, traffic-engineer report, or comparable project-specific traffic-engineering analysis. It also contains no defined mitigation plan, binding service-time restriction, or vehicle, visitor, or attendance cap. These observations identify the evidence available for the CUP traffic finding; they do not assert that every listed item was a mandatory CUP attachment.

County CUP materials place the burden on the applicant to demonstrate that the use can be developed without undue traffic congestion or hazards. Later technical review may be required, but it does not establish what evidence supported the earlier CUP finding. [CUP application; certified transcript TR-205–214.]

II. ZA Notice of Decision — April 14, 2026

The ZA NOD contains 12 findings and three conditions. March 11 and April 8 hearing transcripts were not available in the reviewed materials.

- **Church and incidental facilities — Mixed record / appeal issue.** Record materials depict school/daycare and educational uses. Later CPC proceedings addressed withdrawal but do not resolve what the ZA record contained.
- **Site adequacy; ingress/egress; and neighborhood effect — Mixed record / appeal issue.** The appeal challenges whether evidence established access, parking, traffic capacity, drainage, fire access, full-project capacity, compatibility, and compliance with rural-area policies. The application lacked project-specific traffic engineering; the NOD anticipated later TIA and Public Works review.
- **Intended parking, landscaping, buffers, and fencing — Mixed record / appeal issue.** Stated intentions do not alone establish completed compliance or adequate, enforceable mitigation.
- **Friday service could be moved — Unsupported as stand-alone mitigation.** No binding schedule, peak restriction, attendance/vehicle cap, or enforcement mechanism was adopted.
- **Future TIA, improvements, and welfare conditions — Mixed record / appeal issue.** The appeal challenges reliance on later review and identifies unresolved traffic, drainage, emergency-access, lighting, noise, and operating-control questions.
- **Other ZA findings and conditions.** Conditional-use status, reported opposition testimony, rural location, and limited approval are accurate record descriptions, but they do not resolve separate CUP criteria. Permit/footprint and outdoor-sound conditions are enforceable. Impervious-surface coordination is a valid later design condition but does not itself establish drainage or hydrology adequacy at CUP approval.

III. CPC / Board of Adjustment Decision — July 1, 2026

The CPC review incorporates the certified July 1 transcript. It confirms later safeguards and also identifies unresolved traffic, scope, and site-specific questions when CPC acted.

- **Church and incidental facilities — Mixed record / appeal issue.** Staff said school became a separate-CUP-level use; the applicant withdrew school/daycare and revised material was accepted. The appeal challenges final scope and program/floor-area clarity. TR-82–85; TR-219–221.
- **Site adequacy — Mixed record / appeal issue.** Updated material showed about a 43,000-SF ground-floor footprint. Staff called CUP material conceptual and sought clarity. TR-83–84; TR-218–221.
- **Ingress/egress and TIA — Mixed record / appeal issue.** Public Works described later TIA and mitigation. No project-specific TIA or quantified site trips existed when CPC acted. TR-205–214.
- **Mixed uses, parking, buffers, fencing, and compatibility — Mixed record / appeal issue.** The appeal challenges whether the materials and conditions were sufficiently specific and enforceable, given rural designation, nearby residences, scale, traffic, and policies.
- **Friday service — Unsupported as stand-alone mitigation.** No fixed schedule, cap, or enforcement mechanism was identified. TR-206; TR-210; TR-213–214.
- **TIA, grading, and drainage at building permit — Valid future conditions; do not cure the pre-approval evidence issue.** These are real safeguards, but trip generation and impacts were unquantified when CPC decided. TR-205–214.
- **Other CPC conditions.** School withdrawal, permit/footprint, height, outdoor sound, NMDOT, wall/fence, lighting, signage, and noise requirements are enforceable restrictions or later code-compliance conditions. They do not independently resolve the appeal's distinct CUP-stage evidence questions.

IV. Clarifying the Appeal Issue

What the appeal does not contend. The appeal does not contend that every final engineering document—such as final TIA, final drainage plan, fire review, or construction-level drawings—had to be completed before CUP consideration. Important technical review may occur at building permit.

What the appeal does contend. The appeal contends that evidence available to ZA and CPC when they acted was insufficient to support required CUP findings, especially traffic. The County's CUP materials place the burden on the applicant to show that the proposed use could be developed without undue traffic congestion or hazards.

Later review does not answer the earlier evidentiary question. Luna testified that a TIA and agreed mitigation would be required before permit issuance and opening. Those are real later safeguards, but they do not establish what evidence supported the prior CUP finding. TR-205:1–17; TR-206:3–12.

Project-specific evidence and possible outcomes. A scope or TIA before the CUP decision could have supplied information about trip generation, access, intersections, and potential conditions. It would not have predetermined denial; it could have supported denial, continuance, remand, redesign, enforceable limits, project-specific mitigation, or approval.

Certified-record context. Commissioner Withers asked how CPC could evaluate added traffic without knowing the project's trip generation. Director Hamm acknowledged "some subjectivity" because CPC did not then have a traffic-impact analysis. Luna stated that this project "does need to have its very own traffic study for this location." TR-207:16–25; TR-208:1–20; TR-210:17–24.

V. Neutral Treatment Clarification

Same neutral framework. The appeal does not seek a special or heightened traffic burden because the applicant is a religious institution. It seeks application of the County's ordinary, neutral CUP and traffic-review standards. Equal treatment means that comparable religious and secular assembly uses should be evaluated under the same applicable standards.

Prior approvals do not suspend current standards. Prior approvals that may not have required sufficient traffic review do not suspend the County's present CUP criteria or require the County to repeat a prior deficiency. Conversely, the County may not impose a traffic requirement on this project that it would not apply to a comparably situated secular assembly use. The question is whether ZA and CPC had sufficient evidence in the record, when they acted, to support the required no-undue-traffic finding.

Comparable-use question. The relevant comparison is not simply whether another church received a CUP without an earlier TIA. It is what neutral traffic-review framework the County would apply to a comparably sized and situated assembly use with similar access, expected traffic, roadway conditions, and safety or capacity concerns. Equal treatment does not require a reduced evidentiary burden for a religious applicant; it requires consistent application of neutral criteria.

VI. Conclusion

The record includes real later-stage safeguards. It also shows that the original CUP application did not include a project-specific traffic-engineering analysis supporting the traffic criterion. Final TIA, drainage, fire, and portions of design review were assigned to later permitting stages. The appeal does not contend those reviews could never occur later; it contends that evidence available to ZA and CPC was insufficient to support required CUP findings, particularly undue traffic congestion or hazards.

This guide explains record materials already available through the BCC portal. It does not amend the filed appeal, add evidence, replace the official record, or ask the BCC to rely on information outside the record.